

| USPTO Examination and Attorney Assistant Examination Quality Review RFI - Questions & Responses |                                                                                                                                                                                                                                                                                                                            |                                                                                                   |
|-------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
|                                                                                                 | Vendor Questions                                                                                                                                                                                                                                                                                                           | USPTO Responses                                                                                   |
| 1                                                                                               | Is the project mentioned above is considered as a potential new requirement or is there an incumbent contract currently performing these services? If there are incumbent vendor(s), would you be able to provide the contract details (such as: Vendor Name, Contract Number, Award and end dates, total contract value)? | This is a new requirement.                                                                        |
| 2                                                                                               | Is an estimated ceiling available for this effort?                                                                                                                                                                                                                                                                         | A ceiling or an estimate is not available at this time.                                           |
| 3                                                                                               | Can government confirm the response can include both tables and narratives in the written response?                                                                                                                                                                                                                        | Yes, tables and narratives are acceptable.                                                        |
| 4                                                                                               | Are there target SLAs for processing or response times for each requirement?                                                                                                                                                                                                                                               | No, not at this time.                                                                             |
| 5                                                                                               | To what extent should solutions support iterative expansion beyond initial search results to ensure comprehensive coverage, as opposed to primarily relying on the most relevant matches identified at the outset?                                                                                                         | Solutions more expansive and complete than anything basic would be acceptable and highly desired. |
| 6                                                                                               | What level of completeness is expected for web-based evidence (for example, a small set of representative supporting examples versus broader, more exhaustive coverage across multiple sources)?                                                                                                                           | Metrics have not been established but the closest to 100% complete would be desirable.            |
| 7                                                                                               | Should solutions be responsible for aggregating and normalising global trademark data, or should they rely on USPTO-preferred data sources and existing integrations?                                                                                                                                                      | As the USPTO is a signatory of the Madrid Treaty, an international database is important.         |

|    |                                                                                                                                                                                                                                                                             |                                                                                                                                                                                       |
|----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 8  | What level of domain-specific trademark expertise is required versus transferable capability from adjacent domains (e.g., patents, legal AI)?                                                                                                                               | There is no requirement for cross-IP capabilities.                                                                                                                                    |
| 9  | How are factors such as phonetic, visual, and goods/services similarity currently defined, operationalised, and prioritised within examiner workflows?                                                                                                                      | The basic answer to this question is too expansive at this stage in the process. Respondents are expected to offer their best solution to these and all other examination components. |
| 10 | What criteria will be used to assess prototype solutions in later stages (for example, search effectiveness, evidence coverage, workflow integration, and explainability)?                                                                                                  | Subject matter experts in the field of legal trademark examination will be responsible for later-stage analysis.                                                                      |
| 11 | Is there expected alignment with patent office users, and would the USPTO be interested in a single solution applicable across both trademark and patent domains?                                                                                                           | No. That is out of the scope of this RFI's requirement.                                                                                                                               |
| 12 | Is integration with LexisNexis content considered a mandatory requirement?                                                                                                                                                                                                  | No.                                                                                                                                                                                   |
| 13 | Our company currently has products designated as FedRAMP Ready on the FedRAMP Marketplace and intends to pursue full FedRAMP authorisation for future enhancements. Can the USPTO confirm whether this status is sufficient to meet participation eligibility requirements? | USPTO can generally work with FedRAMP ready designation.                                                                                                                              |
| 14 | For solutions that are not cloud-based, can the USPTO confirm whether alternative security authorisation frameworks would be considered acceptable?                                                                                                                         | The USPTO is not interested in non-cloud based solutions.                                                                                                                             |

|    |                                                                                                                                                                                                                                                                                                                                     |                                                                                                            |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| 15 | Does the USPTO currently use AI tools to support the functions outlined in this RFI? If so, can it share which products or solutions are currently in use?                                                                                                                                                                          | Yes some AI tooling in use or in prototype/pilot phase. Sharing is irrelevant to RFI responses.            |
| 16 | Can the USPTO clarify whether RFI 135-0035-26 (Examination and Attorney Assistant – Examination Quality Review) and RFI 135-0034 (Fraud Identification, Unsupervised AI, and Preventing Impersonations) are intended as separate efforts, or whether they are related and may form part of a single, integrated future requirement? | Yes, these are separate efforts and requirements.                                                          |
| 17 | Are there any USPTO-specific security requirements or guidelines, beyond FedRAMP or NIST frameworks, that vendors would be required to comply with?                                                                                                                                                                                 | Vendors must comply with all federal rules and regulations.                                                |
| 18 | Does the USPTO intend to award a single vendor across all solution areas, or is there an option to award separate vendors for individual components?                                                                                                                                                                                | There is an option to award to separate vendors.                                                           |
| 19 | Does the USPTO see additional value in a single vendor delivering solutions across all three solution areas?                                                                                                                                                                                                                        | The USPTO is conducting Market Research and will make that determination later in the procurement process. |
| 20 | Would the USPTO consider expanding security requirements to include NIST 800-171 as an alternative?                                                                                                                                                                                                                                 | No.                                                                                                        |

|    |                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                 |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 21 | How important is scalability and continuous development of AI technology?                                                                                                                                                             | Scalability is important in terms of meeting the business outcomes necessary for TM operations. Continuous Development, Security, and Operations are very important in terms of continuous improvement and sound IT operations. |
| 22 | Do you need to integrate with a Document Management System or other internal systems?                                                                                                                                                 | Yes, there are dependencies that will be required.                                                                                                                                                                              |
| 23 | What value will any future RFP place on training and onboarding?                                                                                                                                                                      | That is undetermined at this time.                                                                                                                                                                                              |
| 24 | Does the USPTO require that one vendor be able to perform all the Requirements in the Examination and Attorney Assistant section, or is performance in one or two acceptable?                                                         | Performance in one or two is acceptable.                                                                                                                                                                                        |
| 25 | We respectfully request 10 full business days after answers to questions have been issued. Can the USPTO extend the due date if needed to allow us the time to fully understand and respond to the information coming out of the Q&A? | The Stage One due date will be extended for a few days. Please refer to the updated RFI for that revised due date.                                                                                                              |
| 26 | As Examining Attorneys issue-spot for informalities, practice and/or procedural issues, and substantive (statutory) refusals, does USPTO require access to authoritative third-party sources?                                         | Yes. This functionality will need to access sources outside the USPTO.                                                                                                                                                          |
| 27 | If yes, does USPTO require access to current news content like newspapers, wire services, magazines and journals (most recent two years)?                                                                                             | Yes.                                                                                                                                                                                                                            |

|    |                                                                                                                                                                                                                            |                                                                                                                                           |
|----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| 28 | If yes, does USPTO require access to archived news content like newspapers, wire services, magazines and journals (two years or older)?                                                                                    | Yes.                                                                                                                                      |
| 29 | If yes, does USPTO require access to international news content like newspapers, wire services, magazines and journals?                                                                                                    | No, this functionality is not essential for USPTO users. The USPTO user generally prioritizes domestically available information sources. |
| 30 | If yes, does USPTO require access to company and financial content which could include company profiles, executive directories, or SEC filings?                                                                            | Generally, no, but this functionality may be helpful for limited use cases.                                                               |
| 31 | If yes, does USPTO require access to public records content which could include locate a person, property or business?                                                                                                     | Generally, no, but this functionality it may be helpful for limited use cases.                                                            |
| 32 | Do Examining Attorneys require access to authoritative primary and secondary legal sources (e.g., federal statutes and regulations, intellectual property agency and administrative decisions)?                            | Yes, but mostly those specific to Trademarks.                                                                                             |
| 33 | Would Examining Attorneys benefit from a Generative AI model grounded in authoritative legal content that would generate responses to legal questions or summarize legal documents including cases, statutes, filings?     | Yes.                                                                                                                                      |
| 34 | Do Examining Attorneys need a validation tool that will verify the accuracy of caselaw and statutory citations (prevent hallucinations, provide access to underlying document) and ensure the citation is valid, good law? | Yes.                                                                                                                                      |

|    |                                                                                                                                                                                                                                                                                                         |                                                                                                                             |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------|
| 35 | Do Examining Attorneys require access to federal and state dockets including underlying filings?                                                                                                                                                                                                        | No.                                                                                                                         |
| 36 | As Examining Attorneys issue-spot for informalities, practice and/or procedural issues, and substantive (statutory) refusals, would access to multiple embedded General AI models be useful (to supplement authoritative third-party sources with open source information)?                             | Yes.                                                                                                                        |
| 37 | We are planning on obtaining a FedRAMP certification but haven't initiated the process. We feel that our solution meets a lot of the requirements listed in the attached RFI and we would like to make a submission. Could you let me know if there is a way to make an exception for our organization? | There will be no exceptions for the FEDRAMP certification requirement. Solutions in FedRAMP ready status may be considered. |
|    |                                                                                                                                                                                                                                                                                                         |                                                                                                                             |